
For a Moment, It Looked as if Trump's Efforts to Rig the Midterms Had Failed. Then Three Things Happened.

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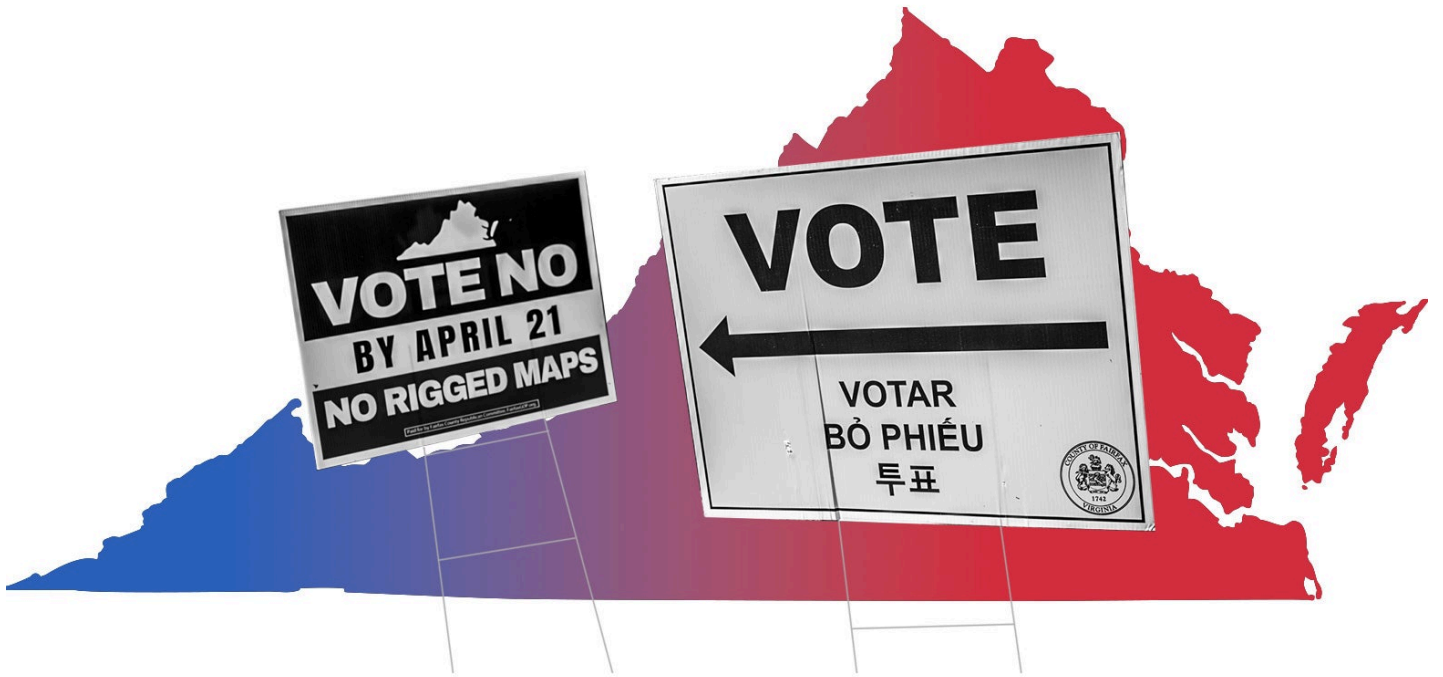
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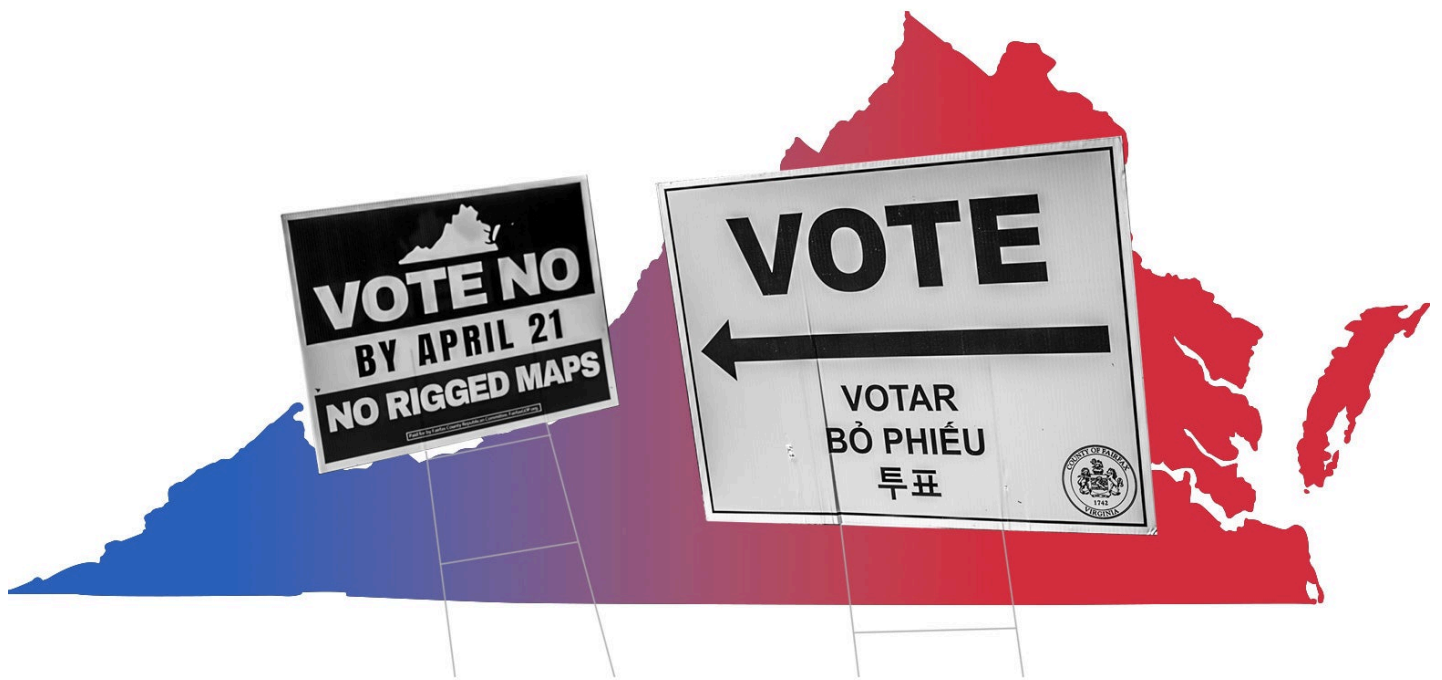


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[Sign up for the Surge](#), the newsletter that covers the most important political nonsense of the week, delivered to your inbox every Saturday.

Welcome to this weekend's edition of the Surge, a politics newsletter that, in light of the hantavirus outbreak, sadly will be canceling all of our future vacations to [rat-infested garbage dumps](#).

Speaking of rat-infested garbage dumps, we've got two entries about California politics this week. John Roberts is deeply disappointed in those who view the Supreme Court as political. And you, the taxpayer, may soon have the great honor of paying for Donald Trump's ballroom—congrats!

Let's begin with the dramatic turn against Democrats in the redistricting wars.

1.

The Supreme Court of Virginia

A devastating series of events for House Democrats in the redistricting wars.

Two weeks ago, Democrats were sitting pretty in the middecade redistricting wars that the White House kicked off by urging Texas to redraw its congressional map. Between the twin gerrymanders of California and Virginia, Democrats looked as if they might even net out on top, given some sputtering efforts by Republicans in other states. But that picture has now been totally reversed, with three loud bangs. This week, Florida quickly passed a new gerrymander giving Republicans an excellent chance to win four new seats. The Supreme Court eliminated protections for predominantly minority-held seats in *Louisiana v. Callais*, prompting hastily organized efforts by states like Louisiana, Tennessee, Alabama, and South Carolina to wring out additional GOP seats late in primary season.

The third dagger came on Friday morning, when the [Virginia Supreme Court tossed](#) the state's redistricting ballot referendum results because "the legislative process employed to advance this proposal" violated the state constitution. That means that Virginia's existing map, currently split between six Democrats and five Republicans, will stay in place, whereas the struck-down map could have netted Democrats an additional four seats. Perhaps this was a conclusion the court could have arrived at *before* allowing an expensive statewide referendum to proceed.

These developments don't eliminate Democrats' ability to win back the House. But they do make control of the House something closer to a toss-up, even in a horrific political environment for Republicans. Democrats have never needed the Surge's permission to get hysterical, but it's warranted here: This has been a catastrophic turn for Democrats, who are watching the national congressional map become stacked against them piece by piece. Blue states have a lot of gerrymandering to do in the coming years to make up the difference.

2.

The ballroom

Congrats to the American taxpayer on the new purchase!

Republicans this week [released text](#) of their party-line reconciliation bill to fund immigration enforcement agencies through the rest of Donald Trump's term. But, dear reader, that's not all that the bill funds. It also offers the Secret Service a fresh \$1 billion in security measures, "including within the perimeter fence of the White House Compound to support enhancements by the United States Secret Service relating to the East Wing Modernization Project." The East Wing Modernization Project has a more common name: Trump's ballroom, which the president has said would cost \$200 million and then \$400 million, but all funded by private donations. Now, per this bill, the ballroom would also cost the taxpayer another \$1 billion to secure it.

The text attempts to bypass these criticisms with this language: "None of the funds made available under this section may be used for non-security elements of the East Wing Modernization Project." But that's some hazy drafting there. The thick, bulletproof windows on the ballroom that Trump brags about would count as security elements, no? What about the walls of the ballroom, which would also presumably need to meet a highly secure building code? No room is secure without a floor—preferably a nice Italian marble. Finally, ceilings necessarily keep any number of nemeses out.

[Democrats are ecstatic](#) about Republicans' decision to put money for an [unpopular ballroom project](#) into a party-line spending bill. The governing party doesn't often share gifts like this so far into an election season. So why *is* the governing party offering this gift, anyway? It may well get cold feet and remove the line item before the bill makes it to a vote. But—per the previous entry—public opinion doesn't matter a whole lot when the electoral strategy is to Democrat-proof congressional maps and rely on structural advantages in the Senate to maintain majorities.

3.

Marco Rubio

Campaigning for president already, are we?

With press secretary Karoline Leavitt out on maternity leave, the White House is having other top administration officials guest-host press briefings until she returns. Up first was Secretary of State Marco Rubio, who charmed the assembled press for nearly an hour. His omnipresence in public recently [has sparked conversations](#) about whether he could overtake Vice President J.D. Vance as the [likely Trump heir in 2028](#), given that Vance hasn't been nearly as visible since the Iran war began.

What caught us was how overtly Rubio converted the press briefing into a 2028 campaign ad. Toward the end of the briefing, someone—maybe his top political strategist dressed in a reporter costume—asked Rubio, “What is your hope for America at a time such as this?” Rubio articulately delivered a heaping serving of nice-sounding pablum before sharing a [video of his response in campaign-ad form](#) the following day. Rubio presumably knows Trump well enough that he wouldn't grab the spotlight like this without his blessing. Maybe Trump is leaning toward a 2028 favorite too.

4.

John Roberts

Any guesses why the public might view the Supreme Court as political?

Chief Justice John Roberts gave remarks this week in which he pushed back on the public perception that justices might be motivated by politics. “I think they view us as truly political actors, which I don't think is an accurate understanding of what we do. I would say that's the main difficulty,” he said. “We're not simply part of the political process, and there's a reason for that, and I'm not sure people grasp that as much as is appropriate.” You all heard the man. We suspect that many of you may owe him an apology.

But really. It takes an awful lot of ... we don't know what ... to say the public is wrong to believe that there might be political interests on this court one week after six judges [went out of their way](#) to re-nuke surviving elements of the Voting Rights Act. Four years after nuking the right to an abortion.

Three years after [affirmative action](#). Two years after providing Trump broad presidential immunity. A year [after curbing](#) the *Chevron* doctrine. It was a passionate, decadeslong *central* organizing effort of the Republican Party for 50 years to install a court like this, so that it would make decisions that suited the Republican coalition's interests. Now it is doing so. Roberts is right that this SCOTUS majority is not "part of the political process." It's a product of it. These decisions didn't just fall out of a coconut tree.

5.

Graham Platner and Susan Collins

The race is on (pending physical).

With Gov. Janet Mills having dropped out of the Maine Senate race last week, the general election between oysterman veteran Graham Platner and Sen. Susan Collins is on. Both released ads this week that neatly laid out the contours of the expensive contest to come. Collins' campaign is focused on the amount of money she can and would continue to secure for Maine as a key swing vote and chair of the Senate Appropriations Committee, and [her ad describes](#) one particular project she acquired funding for. Platner's [significantly louder ad](#) opens with him, in his professional wrestling voice, declaring: "SUSAN COLLINS' CHARADE IS OVER." Emphasizing that Collins hasn't done enough to rein in Trump, Platner says, "We don't care that you are 'concerned' while we go broke."

Should be an interesting race! But first: health checks. For the first time in her career, Collins acknowledged that she has a "benign essential tremor" that makes for the noticeable trembling in her voice and body but said that it "has absolutely no impact on my ability to do my job or on how I feel each day." We were surprised that this hadn't been out there before. She obviously has, and has had, an essential tremor. It's fine. It may not have been something that she would've rushed to get out there, though, if she weren't facing a younger opponent in an electorate more concerned about the age of its elected officials.

6.

Xavier Becerra

Surging™ in California, much against the wishes of his ... former colleagues?

For some reason, California Democratic voters have been struggling to choose between the array of washed-up political figures who were semi-famous on MSNBC six or eight years ago that constitute their gubernatorial field. Former Rep. Katie Porter started the race with cash and name recognition but is suffering from a shortage of human beings who want her to govern them. Tom Steyer is just a billionaire trying to buy the race. We all know how Eric Swalwell turned out. The biggest move since Swalwell's exit from the race, though, has been a [leap in the polls](#) from former congressman,

California attorney general, and Biden Cabinet member Xavier Becerra. That rise makes some sense: Becerra is an experienced, safe, and boring candidate of last resort for voters who don't know what the hell else to do. It's basically the Biden 2020 playbook.

We were tickled, then, to see another iteration of our favorite story appear in Politico amid Becerra's rise: an anonymity-heavy piece quoting the politician's former administration colleagues calling him a loser. "It's like: 'We need to figure out a candidate who can win!' But then ... him? Really?" one former Biden administration [official told Politico](#). Says another mysterious figure: "He would go to brief the president and was not prepared at all, almost to the point where it was an embarrassment." We've seen these pieces come out against former press secretary [Karine Jean-Pierre](#) and [Vice President Kamala Harris](#) herself when they rear their heads and venture back into the spotlight. The response is always the same: Well, if these people are losers, then what does that say about the administration that hired them?

7.

Spencer Pratt

Yup, we're doing a Spencer Pratt entry.

Continuing with the trend of woeful California Democrats, consider the Los Angeles mayoral race. Incumbent Mayor Karen Bass is up for reelection, and given that she's most famous for having been out of the country early last year while much of her city was burning down, her reelection is no sure thing. Bass and her nearest two rivals, councilwoman Nithya Raman and former (current?) reality television star Spencer Pratt, debated this week. Pratt, a registered Republican running a campaign on public safety and revenge against the mayor for his house burning down, garnered the most headlines for what some would describe as antics, and others, straight talk. For example, on Raman's plan for Los Angeles' homelessness crisis, [Pratt said](#), "I will go below the Harbor Freeway tomorrow with her, and we can find some of these people she's going to offer treatment for. She's going to get stabbed in the neck. These people do not want a bed. They want fentanyl or super meth."

Between the debate, a [viral A.I. video supporting Pratt's candidacy](#), and a recent (and genuinely good) [campaign ad](#) he recently released, Pratt's campaign is getting attention. But that may ultimately help reelect the mayor who he believes burned his house down. Bass has been polling in first, with Pratt and Raman jockeying for second place. Should Pratt perform well enough to make it to a runoff against Bass in November, well, even with all of L.A.'s problems, it wouldn't be easy for the registered Republican reality star with no political experience to defeat the incumbent Democratic mayor of a major city.

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